

Gulab And Ors vs Lal Chand And Ors on 8 July, 2021

Author: Sanjay K. Agrawal

Bench: Sanjay K. Agrawal

HIGH COURT OF CHHATTISGARH, BILASPUR

Order Sheet

SA No. 326 of 2012

Gulab And Ors. Versus Lal Chand And Ors.

SB

Hon'ble Shri Justice Sanjay K. Agrawal

08.07.2021 Proceedings of this matter have been taken up through video conferencing.

Mr. B.P. Gupta, counsel for the appellants/defendants.

Heard on admission and formulation of substantial question of law.

This second appeal is admitted and shall be heard on the following substantial question of law :-

"Whether both the Courts below were justified in holding that the alienation made by Kamla Bai alongwith defendants No.2 and 3 is bad in law ignoring Section 16(1) & (3) of the Hindu Marriage Act, 1955 by which illegitimate children are also entitled to succeed to the property of their father by recording a finding which is perverse to the record?"

Issue notice to the respondents along with copy of substantial question of law. P.F. be paid within seven days from today.

Non-compliance of the order shall lead to automatic dismissal of the second appeal without further reference to the Bench.

Sd/-

(Sanjay K. Agrawal) Judge Ankit